

24SMCV03583 24SMCV03583

County: los-angeles

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Case Number: 24SMCV03583 Hearing Date: September 15, 2026 Dept: 205

Court of California

County of Los Angeles – West District

Beverly Hills Courthouse / Department 205

JOEL PEREZ,

Plaintiff,

v.

HCP 8631 HAYDEN LLC, et al.,

Defendants.

Case No.: 24SMCV03583

Date: September 15, 2026

ORDER RE:

DEFENDANT POSSIBLE PRODUCTION,

INC.'S MOTION FOR LEAVE TO FILE

CROSS-COMPLAINT

BACKGROUND

This is a negligence and premises liability case. Plaintiff fell from a chair at a property owned or managed by Defendant HCP 8631 Hayden LLC. Plaintiff claims that HCP “negligently, carelessly, recklessly and/or wantonly managed, owned, maintained, operated, controlled, designed and/or safeguarded the premises ... such that a chair was allowed to fall into a state of disrepair and therefore prone to collapsing, thereby constituting a dangerous condition.”

After filing his original complaint, Plaintiff filed two amendments substituting Defendant Possible Production, Inc. (“Possible”) for Doe 1, and Defendant Quality Control & Services (“Quality”) for Doe 2. Possible filed an answer on March 2, 2025 which did not contain cross-claims.

This hearing is on Possible’s motion for leave to file a cross-complaint against Quality (who on September 3, 2026 was named as a defendant in Plaintiff’s complaint). Possible proposes to sue Quality for equitable indemnity, implied indemnity, apportionment of fault, contribution and declaratory relief. Possible argues that Quality was responsible for the “ownership, maintenance, and/or control of the subject chair [which] was the intervening cause of Plaintiff’s alleged injuries.” Possible claims that it did not file the cross-complaint earlier due to oversight. It discovered that a third party owned or maintained the chair after the deposition of Carmen Bonilla in November 2025, and in the ensuing six months, Defendant diligently conducted an investigation in order to determine the identity of the third party. There was no opposition filed as of the posting of this tentative ruling.

LEGAL STANDARD

Code of Civil Procedure section 428.10, subdivision (b), authorizes a party against whom a cause of action has been asserted to file a cross-complaint alleging a cause of action against a person alleged to be liable thereon, whether or not that person is already a party, when the proposed cause of action “(1) arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause brought against him or (2) asserts a claim, right, or interest in the property or controversy which is the subject of the cause brought against him.” (Code Civ. Proc., § 428.10, subd. (b).)

A party may file a cross-complaint against a co-party or another person before the court sets a trial date. (Code Civ. Proc., § 428.50(b).) Here, trial has already been set (for March 22, 2027.) Once a trial date has been set, the party must obtain leave of court, which “may be granted in the interest of justice at any time during the course of the action.” (Code Civ. Proc., § 428.50(c).)

“Permission to file a permissive cross-complaint is solely within the trial court’s discretion.” (Crocker Nat. Bank v. Emerald (1990) 221 Cal.App.3d 852, 864.) Factors considered are judicial efficiency, fairness to the parties, the interests of justice, and delay in seeking court’s permission to file the cross-complaint. (Id.)

DISCUSSION

Possible’s proposed cross-claims against Quality are permissive. While they arise from the same transaction and occurrence as Plaintiff’s complaint against Possible, indemnity and contribution claims generally do not accrue until a judgment or settlement is paid. (Time for Living, Inc. v. Guy Hatfield Homes/All American Development Co., 230 Cal. App. 3d at 36.) So Possible does not forfeit the claims by failing to bring them here, and accordingly, they are not compulsory cross-claims. (Silver Organizations Ltd., 217 Cal. App. 3d at 98-99

(policy behind compulsory claim statute (section 426.50 is to avoid forfeiture of claims).)

For permissive cross-claims, the proper standard is whether the filing of the cross-claims serves the interest of justice. (Code Civ. Proc., § 428.50(c).) The Court concludes it does so here.

Plaintiff is suing Possible and Quality for injuries resulting from a defective chair that Plaintiff claims was negligently maintained. Possible seeks to sue Quality whose alleged negligence Possible claims is an intervening cause of the accident. Trying the actions together will avoid possible duplication of effort and inconsistencies and promote judicial efficiency.

There is no evidence of delay on the part of Possible in seeking leave. Possible represents that it was not aware of its potential claims against Quality until the deposition of a witness in November 2025, which prompted a six month investigation by Possible to identify Quality.

Even if there is delay, Plaintiff has not argued it will be prejudiced by the amendment. Indeed, Plaintiff has recently added Quality as a defendant. Also, Plaintiff has not opposed Possible's motion, thereby conceding the merits of the motion. (See D.I. Chadbourne, Inc. v. Super. Ct. (1964) 60 Cal.2d 723, 728, fn. 4 [where nonmoving party fails to oppose a ground for a motion "it is assumed that [nonmoving party] concedes" that ground].)

CONCLUSION AND ORDER

For the foregoing reasons, the Court GRANTS the motion for leave to file cross-complaint.

IT IS SO ORDERED.

DATED: September 16, 2026 _____

Edward B. Moreton, Jr.

Judge of the Superior Court